

F. No. CBIC-140605/8/2023-Drawback
Government of India
Ministry of Finance, Department of Revenue
Central Board of Indirect Taxes & Customs
(Drawback Division)

New Delhi, dated the 10th April, 2026

To

All Principal Chief Commissioners/Chief Commissioners of Customs/Customs (Preventive)
All Principal Chief Commissioners/Chief Commissioners of Customs & Central Tax
All Principal Commissioners/ Commissioners of Customs/Customs (Preventive)
All Principal Directors General/Directors General, under CBIC
Sir/Madam,

Subject: - Clarification regarding remission or rebate in case of short realisation of sale proceeds by exporters under RoDTEP and RoSCTL schemes -reg.

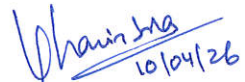
Representations have been received from the trade seeking clarifications whether as in case of duty drawback, full remission or rebate under RoDTEP and RoSCTL schemes is also available on Free on Board (FOB) value without deducting the agency commission and bank charges. Similar clarification has been requested in case of receipt of payment of compensation for short realisation of sale proceeds through Export Credit Guarantee Corporation (ECGC).

2. The matter has been examined in the Board in consultation with the DGFT and Ministry of Textiles. In this context, attention is invited to the Board Circular No. 64/2003-Cus dated 21.07.2003 and 33/2019-Customs dated 19.9.2019 wherein it has been clarified that duty drawback is permitted on full FoB value without deducting agency commission and foreign banking charges, provided these deductions fall within the overall limit of 12.5% of the FoB value. Agency commission and foreign bank charges, separately or jointly, exceeding this limit need to be deducted from the FoB value for granting duty drawback. It is stated that similar treatment in respect of realisation of export proceeds shall be applicable for grant of RoDTEP and RoSCTL benefits also.

3. Further, it is also clarified that, in line with Rule 18 of the Customs and Central Excise Drawback Rule, 2017 and in terms of para 2.54 of the Foreign Trade Policy, 2023 read with para 2.71 and 2.72 of HBP, compensation of short realisation of sale proceeds from Export Credit Guarantee Corporation (ECGC) may be treated as receipt of sale proceeds and remission or rebate under RoDTEP and RoSCTL schemes may not be recovered, provided the Reserve Bank of India writes off the requirement of realisation of the sale proceeds on merits and the exporter produces a certificate from the concerned Foreign Mission of India about the fact of non-recovery of sale proceeds.

4. A suitable Trade Notice and Standing Order may be issued in this regard for guidance of trade and staff.

Yours faithfully,


10/04/26

V Phanindra Vissapragada
Under Secretary to the Government of India